

## **Tentative Rulings for September 21, 2026 Department 6**

**To request oral argument, you must notify Judicial Secretary  
Crystal Marias at (760) 904-5722  
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 6 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,  
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 830 3643**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

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1.

| CASE #      | CASE NAME                            | HEARING NAME        |
|-------------|--------------------------------------|---------------------|
| CVRI2403727 | TOKAREV vs BMW OF NORTH AMERICA, LLC | MOTION TO TAX COSTS |

**Tentative Ruling:**

**Moving party:** Plaintiff Danil Tokarev  
Represented by: Knight Law Group LLP

**Responding party:** Defendant BMW North America, LLC  
Represented by: Nelson Mullins Riley & Scarborough LLP

This is a lemon law case. On 6/28/24, Plaintiff Danil Tokarev filed a Complaint against Defendant BMW North America, LLC (BMW) for breach of express warranty in violation of the Song Beverly Consumer Warranty Act (SBA) regarding defects in a certified preowned 2018 BMW X1 that he purchased in March 2022.

A jury trial in this matter commenced on 4/23/26, and a verdict in BMW's favor was reached on 5/6/26. On 6/10/26, Judgment was entered by the Court.

On 6/29/26, BMW filed its Memorandum of Costs (MOC) seeking \$15,397.92 in costs.

Plaintiff now moves to tax \$13,567.82 in costs sought by BMW in its MOC. Plaintiff argues that the MOC does not include critical information to determine whether the costs were reasonable and recoverable.

BMW opposes and argues it is the prevailing party and is entitled to recover all costs and expenses. It states the verified MOC which constitutes prima facie evidence that the costs were necessarily incurred.

In reply, BMW argues the only costs recoverable are those costs specifically enumerated in CCP §1033.5(a) and not explicitly excluded under CCP §1033.5(b), as long as the claimed costs are "reasonable in amount" and "reasonably necessary to the conduct of litigation." (CCP §1033.5(c)(2)-(3).)

**Analysis**

**I. Standard**

Generally, a "prevailing party" is entitled to costs. (C.C.P., § 1032(b); *Santisas v. Goodin* (1998) 17 Cal.4th 599, 606.). A prevailing party includes a prevailing defendant in a Song-Beverly Act case. The California Supreme Court held that the Song-Beverly Act "provides no exception to the general rule set forth in section 1032(b) permitting a prevailing defendant to recover costs." (*Murillo v. Fleetwood Enters., Inc.* (1998) 17 Cal.4th 985, 911.)

“A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of mailing of the notice of entry of judgment... The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.” (Cal. Rules of Court, rule 3.1700.)

The losing party may contest the costs that a prevailing party seeks. (C.C.P., § 1034(a).) The challenging party has the burden of demonstrating that those costs are unreasonable or unnecessary. (*Adams v. Ford Motor Co.* (2011) 199 Cal.App.4th 1475, 1486; 612; *South LLC v. Laconic Limited Partnership* (2010) 184 Cal.App.4th 1270, 1285.)

C.C.P. § 1033.5 sets forth the costs recoverable by the prevailing party. “Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.” (C.C.P., § 1033.5(c)(2); *Perko's Enterprises, Inc. v. RRNS Enterprises* (1992) 4 Cal.App.4th 238, 244.) A “properly verified memorandum of costs is considered prima facie evidence that the costs listed in the memorandum were necessarily incurred.” (*Bach v. County of Butte* (1989) 215 Cal.App.3d 294, 308; see also *Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682.) This puts the burden on the party seeking to tax costs to show that they were not reasonable or necessary. (*Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 773-74.) If items are properly objected to, they are put in issue, and the burden of proof is on the party claiming them as costs. (*Id.*)

The memorandum of costs need not contain invoices, billings, or statements. (*Bach v. County of Butte* (1989) 215 Cal.App.3d 294, 308; see also Cal. Rules of Court, Rule 3.1700(a)(1) (only verification required).) “Documentation must be submitted only when a party dissatisfied with the costs claimed in the memorandum challenges them by filing a motion to tax costs.” (*Id.*)

## **II. Merits**

Here, there is no dispute that BMW is the prevailing party and is entitled to recover its costs as a matter of right under C.C.P., § 1032(b). However, Plaintiff does challenge certain costs, discussed below:

### **Item No. 1. – Filing and motion fees**

Filing and motion fees are expressly allowable costs under C.C.P. § 1033.5(a)(1). BMW seeks \$1,375.25 in costs, which are facially appropriate. Plaintiff only argues this request is unsubstantiated and unexplained. In opposition, BMW submits invoices from One Legal for filing fees and charges for attorney service totaling \$1,558.55. “Neither subdivision (a) or (b) [of Code of Civil Procedure section 1033.5] states whether attorney service charges for court filings and deliveries or mediators’ fees are allowable or not. Thus, these costs fall within the ‘discretionary category,’ subdivision (c)—that is, they are allowable if in the court’s discretion they were ‘reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.’” (*Sanford v. Rasnick* (2016) 246 Cal.App.4th 1121, 1132.)

In reply Plaintiff does not challenge these as unreasonable. The Court denies the motion as to these costs.

#### **Item 4 – Deposition costs**

C.C.P., § 1033.5 permits the recovery of costs for the taking, video recording and transcribing of necessary depositions, including an original and one copy of those taken by the claimant and one copy of deposition taken by the party against whom the costs are allowed. (C.C.P., § 1033.5(a)(3)(A).) “The recovery of deposition costs does not depend on whether the deponent ultimately testifies at trial...The standard is whether the cost is ‘reasonably necessary to the conduct of the litigation.’” (*Chaaban v. Wet Seal, Inc.* (2012) 203 Cal.App.4th 49, 57.) The nature of the case dictates what discovery is reasonable and necessary. (*Culbertson v. R. D. Werner Co., Inc.* (1987) 190 Cal.App.3d 704, 711.)

BMW seeks \$7,463.80 in costs. Plaintiff argues BMW has failed to substantiate any of the depositions with itemized receipts or invoices. In opposition, BMW submits invoices for deposition of Plaintiff vol. 1 (\$2,584.30 + reprint for \$251.35); Plaintiff vol. 2 (\$1,773.10 + reprint of \$197.40); Plaintiff’s expert Thomas Lepper (\$1,878.20), and transcripts of Plaintiff’s depositions of BMW’s PMQ Mark Nicastro (\$623.20) and expert Travis Brown (\$605.00).

In reply, Plaintiff specifically requests the Court tax deposition add on charges within each of the three invoices for the depositions of Plaintiff and his expert for condensed transcripts (\$45), “intelligent summary +” (\$100), litigation support package (\$80), and “hard copy original prod and shipping” (\$50 for Lepper deposition only) plus \$700.10 in the re-prints for a total tax of \$1,425.10. While the re-prints sought in this item only total \$448.75, the request to tax the add on charges is well taken as these charges appear to have been for the convenience of counsel. The Court grants the motion to tax Item 4 in the total of \$1,173.93.

#### **Item 13 – Models, enlargements, and photocopies of exhibits**

C.C.P., § 1033.5(a)(13) provides that costs for “[m]odels, the enlargements of exhibits and photocopies of exhibits, and the electronic presentation of exhibits, including costs of rental equipment and electronic formatting, may be allowed if they were reasonably helpful to aid the trier of fact.”

BMW originally sought to recover \$1,752.94 for its models, enlargements, and photocopies of trial exhibits, but states it erroneously included the \$251.35 cost for its copy of Plaintiff’s deposition session 1 transcript in this figure. It requests only \$1,501.59 for its models, enlargements, and photocopies of trial exhibits, for which BMW submitted a supporting invoice. Counsel declares generally that these were reasonable and necessary for trial. Plaintiff argues in reply that the invoices reflect \$300 in charges for 5 flash drives which are exorbitant and not necessary. The Court finds no impropriety or unreasonableness in the invoices as to the flash drives. The Court grant the motion to tax Item 13 in the amount of \$251.35.

## Item 15 – Other

Plaintiff argues it does not know what BMW seeks to recover in this Item. In opposition, BMW attaches invoices reflecting \$2,975.83 in costs for the court reporting service at trial and messenger service used for the transportation of documents, including exhibits. In reply, Plaintiff only challenges \$451.12 in messenger services used at trial. Counsel declares these were necessary for trial. The Court denies the request to tax.

**Grant the motion to tax in part.**

2.

| CASE #      | CASE NAME                                       | HEARING NAME                     |
|-------------|-------------------------------------------------|----------------------------------|
| CVRI2405327 | PEREZ vs TOYOTA<br>MOTOR SALES U.S.A.,<br>INC., | MOTION TO SET ASIDE<br>DISMISSAL |

### **Tentative Ruling:**

A motion to set aside is generally governed by California Code of Civil Procedure §473(b). A motion to set aside under CCP §473(b) must be based on either: declarations or other evidence showing “mistake, inadvertence, surprise, or excusable neglect” (in which event, relief is discretionary), or an attorney affidavit of fault (in which event, relief is mandatory).

### **Requirements for Relief under the Discretionary Provision of CCP §473(b)**

#### **Mistake, Inadvertence, Surprise, or Excusable Neglect**

CCP §473(b) grants the trial court discretion to vacate a default judgment (and/or any other step taken in a case, including dismissal, entry of default, or an order) on the basis of “mistake, inadvertence, surprise, or excusable neglect.” The moving party bears the burden of demonstrating by a preponderance of the evidence that at least one of these conditions is met. *Hopkins & Carley v. Gens* (2011) 200 CA4th 1401, 1410, 135 CR3d 1, 8–9; *Luz v. Lopes* (1960) 55 C2d 54, 62, 10 CR 161, 165–166.

#### **a. Mistake**

Mistake may be one of fact or law. Mistake of fact occurs when a person understands the facts to be other than they are; a mistake of law occurs when a person knows the facts as they really are, but has a mistaken belief as to the legal consequences of those facts. *People v. Kelly*, 35 Cal.App.2d 571, 574, 96 P.2d 372.

Under CCP §473(b), relief from default may be granted if the moving party demonstrates a material mistake of fact or law, regardless of whether the mistake was made by a party or by his or her attorney. However, because a lawyer has a duty to look up the law if he or she does not know it, an attorney’s mistake of law will be grounds for

relief only if it was reasonable. *Anderson v. Sherman* (1981) 125 CA3d 228, 178 CR 38; *McCormick v. Board of Supervisors*, 198 CA3d 352, 360, 243 CR 627, 621. The controlling factors in determining whether an attorney's mistake was reasonable are: (1) the reasonableness of the misconception; and (2) the justifiability of the failure to determine the correct law. *Anderson v. Sherman* (1981) 125 CA3d 228, 178 CR 38.

#### **b. Inadvertence**

Under CCP §473(b), relief from default may be granted if the moving party demonstrates "inadvertence." Inadvertence is defined as lack of heedfulness or attentiveness, inattention, fault from negligence. *Greene v. Montana Brewing Co.*, 32 Mont. 102, 79 P. 693, 694 (internal citations omitted). Inadvertence in the abstract is no plea on which to vacate a default. *Shearman v. Jorgensen* (1895) 106 Cal. 483, 485, 39 P. 863.

#### **c. Surprise**

Under CCP §473(b), relief from default may also be granted if the moving party demonstrates "surprise." Surprise refers to "some condition or situation in which a party...is unexpectedly placed to his injury, without any default or negligence of his own, which ordinary prudence could not have guarded against." *Credit Managers Ass'n of So. Calif. v. National Independent Business Alliance* (1984) 162 CA3d 1166, 1173, 209 CR 119, 123; *Hearn v. Howard* (2009) 177 CA4th 1193, 1206, 99 CR3d 642, 654.

#### **d. Excusable Neglect**

Discretionary relief from default may be granted where the moving party can show "excusable neglect," i.e., where the moving party can demonstrate that the default could not have been avoided through the exercise of ordinary care. See *Shapiro v. Clark* (2008) 164 CA4th 1128, 1141–1142, 80 CR3d 398; *Jackson v. Bank of America* (1983) 141 CA3d 55, 58, 190 CR 78, 80. The issue boils down to whether the moving party has shown a reasonable excuse for the default. See *Shapiro v. Clark* (2008) 164 CA4th 1128, 1141–1142, 80 CR3d 398, 410 (rejecting "categorical statements about what can be found to constitute excusable neglect").

To determine whether attorney neglect is excusable, the court generally inquires whether a reasonably prudent attorney might have made the same error under similar circumstances. *Generale Bank Nederland, N.V. v. Eyes of the Beholder Ltd.* (1998) 61 CA4th 1384, 1399, 72 CR2d 188, 198. The mere fact that moving counsel was busy is not by itself enough to justify discretionary relief under CCP §473(b). *Toho-Towa Co., Ltd. v. Morgan Creek Productions, Inc.* (2013) 217 CA4th 1096, 1112, 159 CR3d 469, 483–484. Coupled with other extenuating circumstances however, "press of business" may be a factor showing the neglect was excusable. See *Elston v. City of Turlock* (1985) 38 C3d 227, 234, 211 CR 416, 420.

Counsel, Brian Cohen, indicates in his declaration that:

"The Court then scheduled an OSC re Dismissal for July 23, 2026. My declaration in advance of this OSC was thus due July 16, 2026. Unfortunately, our firm inadvertently

calendared the hearing for July 24, 2026 rather than July 23, which had this been correct would have made my declaration due July 17, 2026. 5. Because of our firm's calendaring error I filed my declaration on July 17, 2026 thinking I had done so timely. The issue of the attorneys' fees owed to Plaintiffs in this matter remains outstanding and Plaintiffs anticipate needing to file a motion for payment of such fees and costs."

In opposition, counsel Gabrielle Gonzalez, indicates:

"On January 5, 2026, Plaintiffs filed their Notice of Settlement and provided that settlement was conditional, noting a request for dismissal would be filed no later than June 8, 2026. On February 18, 2026, plaintiffs surrendered the subject vehicle. Also in February 2026, the parties reached an impasse on negotiations regarding plaintiffs' attorney's fees/costs and plaintiffs' counsel advised they will file a fee motion."

It would seem to the Court that it was apparent to Plaintiff that a motion for attorney fees and cost would need to be filed, and that the motion would need to be filed before the OSC date of 7/23/2026 or Plaintiff would risk a dismissal. In the time from February to July, a period of five months, Plaintiff neglected to file a motion for fees and is now asking this court to set aside the dismissal to allow Plaintiff to file the fee motion.

Plaintiff's motion and counsel's declaration only deal with the fact that counsel declaration pursuant to RSC Local Rule 3116 was filed a day late and not as to why Plaintiff failed to file their fee motion. The filing of a declaration is not a guarantee that the Court will continue the OSC date. The Court still needs to make a finding of good cause.

### **Accompanied by a Copy of the Proposed Filing**

CCP §473(b) requires that a motion for discretionary relief "be accompanied by a copy of the answer or other pleading proposed to be filed..." However, the term "accompanied" is interpreted "liberally with a view to substantial compliance." *Job v. Farrington* (1989) 209 CA3d 338, 340–341, 257 CR 210, 211. Therefore, relief may be granted even if the answer or other pleading is served and filed separately from the notice of motion. See *Puryear v. Stanley* (1985) 172 CA3d 291, 294, 218 CR 196, 197–198.

Plaintiff seeks to have the Court set aside the dismissal so that Plaintiff can file an attorney fee motion, yet does not included the proposed filing as required by CCP 473.

**The Court denies the motion for this reason.**

### **Requirements for Relief under the Mandatory Provision of CCP §473(b)**

Under CCP §473(b), the court is required to vacate any default or dismissal "whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect."

## 1. Mistake, Inadvertence, Surprise or Neglect

The grounds for relief under the discretionary and mandatory provisions of CCP §473(b) are identical (“mistake, inadvertence, surprise”) except for one distinction: whereas only “excusable” neglect is a basis for relief under the discretionary provision, any neglect is a basis for relief under the mandatory provision. Thus, where an attorney affidavit of fault is filed, relief must be granted even where the default results from inexcusable neglect by the defendant’s attorney. *Standard Microsystems Corp. v. Winbond Electronics Corp.* (2009) 179 CA4th 868, 897, 102 CR3d 140, 163.

As to mandatory relief, CCP 473(b) states that “notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to the attorney’s mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney’s client, and which will result in entry of a default judgment, or (2) resulting default judgment or **dismissal** entered against the attorney’s client, *unless the court finds that the default or dismissal was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect.* The court shall, whenever relief is granted based on an attorney’s affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.”

If the Court were to grant relief under the mandatory provisions of CCP 473(b), the Court would then look to Counsel’s declaration filed on 7/17/2026 to see if good cause exist to continue the OSC and not dismiss the matter.

CRC 3.1385(c) regarding conditional settlement indicates:

“(1) If the settlement agreement conditions dismissal of the entire case on the satisfactory completion of specified terms that are not to be performed within 45 days of the settlement, including payment in installment payments, the notice of conditional settlement served and filed by each plaintiff or other party seeking affirmative relief must specify the date by which the dismissal is to be filed.”

The notice of settlement filed on 1/5/2026 indicated that dismissal would be filed by 6/8/2026.

Subsection (2) of CRC 3.1385 indicates that “if the plaintiff or other party required to serve and file a request for dismissal within 45 days after the dismissal date specified in the notice does not do so, the court *must* dismiss the entire case unless good cause is shown why the case should not be dismissed.”

In reviewing Mr. Cohen’s declaration signed and filed on 7/17/2026, this Court now makes a determination that good cause is not shown. Counsel indicates that:

“On or around December 26, 2025, Plaintiffs accepted Defendant’s statutory offer to compromise pursuant to California Code of Civil Procedure section 998. The Parties have completed the surrender of the Subject Vehicle and have processed tender of the

funds contemplated between the Parties as settlement. Plaintiffs have received the settlement funds check. *The Parties are currently meeting and conferring on attorney's fees, costs and expenses.* In the event that the Parties cannot agree upon attorney's fees, costs and expenses, Plaintiff(s) intend to file a Motion for Attorney's Fees, Costs and Expenses."

However, the Court knows that the parties had reached an impasse as of February as indicated in the declaration of counsel, Gabrielle Gonzalez on the issue of attorney fees and costs. Plaintiff failing to file a motion for fees and cost from February to July, a five-month delay, is not good cause to continue the OSC set 7/23/2026. Indeed, Mr. Cohen does not indicate that a motion has been filed or will be in short order. Mr. Cohen simply says, "in the event that the Parties cannot agree upon attorney's fees, costs and expenses, Plaintiff(s) intend to file a Motion for Attorney's Fees, Costs and Expenses."

Having considered Mr. Cohen's declaration, the Court does not find good cause to continue the OSC. The matter remains dismissed. Motin to set aside is denied.

**3.**

| <b>CASE #</b> | <b>CASE NAME</b>                                                   | <b>HEARING NAME</b>        |
|---------------|--------------------------------------------------------------------|----------------------------|
| CVRI2602070   | LLOYD vs<br>MENDELBAUM,<br>TRUSTEE OF THE NILI<br>MANDELBAUM TRUST | DEMURRER ON COMPLAINT      |
| CVRI2602070   | LLOYD vs<br>MENDELBAUM,<br>TRUSTEE OF THE NILI<br>MANDELBAUM TRUST | MOTION TO STRIKE COMPLAINT |

**Tentative Ruling:**

The Demurrer and Motion to Strike are unopposed. Accordingly, the Demurrer is sustained in all respects without leave to amend as to all causes of action. The matter is dismissed and all future hearing dates are vacated. Moving party is to give notice of ruling within 10 days of this order. The Motion to Strike is moot.

**4.**

| <b>CASE #</b> | <b>CASE NAME</b>                          | <b>HEARING NAME</b>                         |
|---------------|-------------------------------------------|---------------------------------------------|
| CVRI2604531   | UNIFIRST<br>CORPORATION vs<br>TERPX, INC. | HEARING ON PETITION RE<br>ARBITRATION AWARD |

**Tentative Ruling:**

The partes filed a Stipulation on 9/18/2026 requesting a continuance of the 9/21/2026 hearing to 10/19/2026. The Court grants that requests, but sets the new hearing on the motion on 12/10/2026 at 8:30 a.m. in Dept. 6.